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P.N. Haksar Papers (Record of talks between P.M. and Premier
 (1-II Installments) Chou En-lai held on 23rd April, 1960, from
 4.30 p.m. to 7.45 p.m.)

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Subject File #24

P.M. Yesterday afternoon some officials from both sides met but I am afraid the result did not go as far as I had hoped because I understand the Chinese officials only listened. They said they had come to listen and not to say anything. I had thought that the purpose of such a meeting was that we may discuss and note down points of agreement and disagreement and the ones on which there was doubt so that the area of discussion might be limited.

No doubt your officers must have reported to you that although our officials precisely stated our viewpoint on the western sector of the border along with latitudes and longitudes, this was not done by the Chinese side. Your officers said that they would only listen and would not say anything.

I had said that having discussed the question in the broader aspects, we should try to come to grips with it now and this involved a clear statement on our part of what we think the right border to be and an equally clear statement of what the Chinese Government thinks on the question. Then we would be in a position to know definitely where our differences lie. My idea was that we should take each sector of the border and convince the other side of what it believes to be right.

I do not know how I should proceed now. Should I take up the question in details or perhaps you would like to say something?

PREMIER CHOU: I would like to listen to what you have to say.

P.M.: We can take up the question more precisely. 59

According to us, the boundary between Sinkiang and Ladakh is traditional and customary and has been well recognised for over a thousand years. It passes from the Korakoram Pass along the watershed between Shyok river.

system and Yarkand (Tarim system) and it goes on to a point north-east of Haji Langer where it crosses the Qara Qash river and then goes along the crest of the Kun lun mountain, which forms the watershed between the Yurungkash and the streams flowing south into the lakes in the Aksaichin area, upto a point about 80° east. Then it runs down southwards to Lanakla along the watershed between the streams flowing into the lakes in Tibet and those flowing into the lakes in Ladakh. Then it goes along the watershed between Changchenmo and Chumesang in Ladakh and the streams flowing into the Dyap Iso lake in Tibet. After this the boundary lies along the south bank of Chumesang and eastern bank of Changlung lunpa. It then skirts the western extremity of the eastern half of Pangong lake and goes along the watershed of streams flowing into the western Pangong lake and other streams flowing eastward. It then cuts across eastern Spanggur Tso and follows the northern and eastern watershed of the Indus upto Jarala. It crosses the Indus about five miles south-east of Demchok which lies along the watershed between Koyul lungpa and Hanle rivers and streams flowing into Sotlej river. It then crosses Parechu about five miles south of Chumar and reaches Gya Peak. This is the physical description of the western boundary as we believe it and as is shown in our maps.

I have described it tentatively but if you want I can also give you a note giving the latitudes and longitudes and some historical facts about the aspects of the western border.

This is the traditional boundary for Ladakh and can be traced back to the 10th century. At one time in the 10th century, Ladakh and Tibet were under one rule. Then occurred family partition and western Tibet was given to one member of the family and Ladakh to another. After that Ladakh became separate. In 1664 it accepted suzerainty of the then Indian empire, namely, Moghul Empire which had extended to the area of Kashmir. 15

In 1681 Ladakh was invaded by Tibetans and Mangols but they were driven back by Ladakhis with the aid of the Moghul

Governor of Kashmir. This resulted in the peace treaty of ¹⁶⁸⁴~~1864~~. We have still got a copy of this treaty. This treaty repeats these boundaries which it says were there when the three families first ruled and that they should be maintained. Chronicles of those days said that the boundary between Ladakh and Tibet was fixed at Demohok in that area. Other chronicles of the period also confirm this. In 1846 Cunningham visited this area and he found that the eastern boundary of Ladakh was defined by piles of stones.

But between 1834 and 1841 Ladakh was conquered by the ruler of Jammu, Gulab Singh who was a feudatory of the north Indian kingdom of the Sikhs. In 1841 Gulab Singh's general, Zorawar Singh, invaded western Tibet. He was, however, defeated by Tibetans aided by Chinese troops who advanced towards Leh. The Tibetan and Chinese troops were, however, pushed back by the Ladakhis and a peace treaty was signed in 1842. We have the text of this treaty and on behalf of the Chinese-Tibetan forces it was signed by an army officer who held Chinese rank. The treaty said: "There shall be no transgression and no interference (in the country) beyond the old established frontiers".

Thus the natural and traditional boundary between Ladakh and Tibet was given twice in treaties, once in the treaty of 1684, secondly in the treaty of 1842.

In 1846 the British suggested to the Tibetan and Chinese parties that this accepted boundary should be formally defined. The Chinese Imperial Commissioner at Hong Kong replied saying: "Respecting the frontier, I beg to remark that the border of these territories has been sufficiently and distinctly fixed so that it will be best to adhere to this ancient arrangement and it will prove far more convenient to abstain from any additional measures for fixing them".

I might mention that upto then, that is to say, in the late forties of the 18th century, Kashmir and Ladakh were not a part of the British Empire. It was only a little later that Kashmir accepted British suzerainty but it continued as a State.

In 1899 the British made proposals to the Chinese, again suggesting that this recognised boundary, that is to say, the northern boundary of Kashmir and Ladakh with Sinkiang, should be clearly defined. In making the proposal, the British clearly stated that this boundary of Ladakh, or more correctly Kashmir, lay along the Kunlun mountain, to a point ^{east of} 80° East. The Chinese Government took no objection either to this proposal or to this definition of the border.

From all this it would appear that till the 19th century there was no divergence of opinion on the alignment of the boundary of Ladakh in the parties concerned - namely, the Ladakhis, Kashmiris, the Tibetans, Chinese, Indians or the British.

The caravan routes also were used regularly. There is a route from Yarkand to Karia Pass which went across Aksaichin. There is also another route which went from Haji Langar to Amtoghar Lake.

There is another route from Yarkand to Ladakh which passes through Aksaichin and Pangong Lake.

Throughout 19th century many travellers, explorers and surveyors visited this region. Although the Kashmir State acknowledged the suzerainty of the British, the British did not interfere in the internal affairs of the State and in fact there were strict rules about British people going to these areas. They could not normally go to these areas unless it was ^{with} invitation from the ruler of Kashmir. Actually many of these surveyors and travellers were invited by the rulers of Kashmir for surveying purposes.

We have reports written by these surveyors as well as explorers. There were many surveyors and I could even give the names and details about them but perhaps this could be better given in the form of a note.

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Some of these reports have also maps attached to them, of areas that they have visited.

Broadly speaking, these reports ^{and} maps confirm the natural and traditional boundaries between Tibet and Ladakh which became the administrative boundary also.

The frontier Districts of Kashmir State define these areas for administrative purposes. The revenue reports also describe these areas and a number of revenue settlements had taken place about these areas ^{from} since 1860 onwards. In 1908 a fresh settlement was carried out in regard to Aksaichin, Soda plains, Limbitang area, Chang Chen Mo, Khurnak fort and Demchok. The Wazirs of local Government toured these areas and have also left accounts of their tours.

There are also many geological surveys. The first was held in 1837-38. Then came surveys in 1852, 1870 and 1874.

Between 1875 to 1882 a particularly extensive survey was made of the area and the reports of these surveys give maps of these areas which are in line with the traditional Indian alignment of the border.

The revenue reports refer to pasturage and salt taxes in Khurnak, Chushul, Chang Chen Mo, Chumesong. Grazing ^{the} fields have been included in the land revenue. It is also mentioned in these reports that villagers used to collect salt from Amtoghar Lake.

Evidence of traders who used to ~~be~~ go along these routes contains complaints about bad condition of roads and heavy road taxes.

In 1870, the then Viceroy of India Lord Mayo, ⁵⁴ signed a commercial treaty with Kashmir for developing trade routes. The treaty says that with the consent of the Maharaja of Kashmir, officers will be appointed for surveying the trade routes from Lahaul to the

territory of the rulers of Yarkand including Chang Chen Mo Valley. Therefore, all these parts were considered to be in the Kashmir State and Lord Mayo had to take consent of the Kashmir Government before sending his men to these areas for surveying ^{work} ~~these areas~~.

These records also deal with abolition of dues on account of goods passing through these areas. All this would indicate that India exercised jurisdiction in this area right up to the present times. In recent years, a number of reconnaissance parties have visited this area. These parties went there in 1952, 1954, 1956, 1957 and 1958. Even in July of 1959, a party visited some of the areas. Patrol parties visiting Lanakla in 1954 had planted our National Flag there. They went there again in 1956 and the flag was still there.

Some Chinese maps fairly recent ones, which may be considered official, are also in accordance with our delineations of the border. For example, there is the map of 1893 compiled by ^{Hung Ta-chen} ~~the~~ Chinese Minister ^{at} ~~to~~ St. Petersburg. Then there is the Postal Map of China of 1917. Chinese Government has said that this map is not reliable because it is prepared by foreigners. But even the foreigners must have prepared it from official Chinese sources and there is no reason for them for falsifying the maps. Indeed, if I may say so, the British ^{in those days (not so much)} ~~in the way~~ were concerned about the eastern boundary near Ladakh. They were more concerned about the corner of the Indian boundary adjoining Afghanistan because the Tsarist Russian empire came near to the Indian frontiers there and they were afraid of it. The Ladakh boundary, however, was no worry to them.

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What I have just now stated indicates that in eastern Ladakh (I am not referring to North Aksai Chin area at present) there was no evidence of Chinese authority or activities in the middle fifties of this century. The beginnings of such an evidence come only in 1957 but even then it is very little. In effect, it begins to be evident ^{mainly} ~~much more~~ by the end of 1958 or afterwards.

In the north Aksai Chin area, the Chinese forces had probably come a little earlier than 1957. But not much earlier. They must have come there sometimes after the establishment of Peoples Republic of China. Before that, of course, the big caravan routes were used. But at no time was any claim put forward by either Tibetans or Chinese, supported by any evidence.

Now I have taken so much time and I have ventured to trace the historical, administrative and other accounts very briefly. I have not mentioned the details for it would require a long time. But I have indicated precisely what we believe our northern frontier to be and this belief is supported by facts as stated above. Therefore, there is no question of our making any territorial claim, that is to say, any claim on a fresh territory which did not belong to India or to Kashmir State throughout this long period of time.

I would now like Your Excellency or the Chinese Government to state, apart from general observations, what their approach to this question is, indicating more particularly what they claim as their frontier.

Premier Chou:

Thank you for giving so much time to state the stand-point of the Government of India on the

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western sector of the border and also stating in some detail the material on which the Government of India bases their clear stand. Your Excellency's statement is basically the same as what Director Chang had heard from the officers of the Ministry of External Affairs yesterday. I have already known the substance, as was already conveyed to me by Director Chang. I would now like to give an oral reply and we would also probably send you a written reply on the basis of material which we have on hand here. When we talk about the western sector of the boundary, we should discuss it in relation ^{to} with other sectors. This is the first point of common grounds mentioned by me yesterday. The reason why there is dispute on the boundary question is that the factual basis of both sides are different and this difference in factual basis is formulated into different maps. But there are great divergences about eastern and western sectors and these divergences are shown by our maps. As to the Indian maps there have been a great many changes while in the Chinese maps the changes, if any, have been small.

Your Excellency asked what is claimed by the Chinese government as their boundary? Since in the western sector and the eastern sector our maps differ so much, therefore, naturally there exists a dispute on the boundary question, and we should seek a solution. We have said that the Sino-Indian border is not delimited or determined but throughout history there must have been points of contact. There are great divergences in the maps published by our two countries. Therefore, if we base anything on these maps, then the difference will be great too.

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It is necessary for us to find common ground so that we can reasonably settle it. Our belief is that our boundary is, broadly speaking, not delimited and this is borne out by the western sector.

I would say something in reply to what you have said about the western sector. I would say it in 4 parts:

(1) Geographical features of the boundary. Since you have mentioned about Karakoram pass, it is easy to see that the national boundary between China and India or Sinkiang and Ladakh is the Karakoram watershed. This extends from Kilik Pass, passes through the Karakoram Pass to Kongka Pass. As to area west of Karakoram pass, there is also some divergences of maps but it involves (concerns) Pakistan and need not talk about it. This is the Karakoram watershed. (Karakoram which is known in Chinese by the name of Tsung). This is the natural watershed. Broadly speaking, rivers and streams to the south and west of this belong to India while those to the north and east of it are on China's side. On the Chinese side there are two well-known rivers: Yarkand River (Yi-er-Chiang) to the north and Karakash River to the east. Both these flow towards Khotan region. So much regarding watershed upto the north of Kongka Pass. South of the Kongka pass, the boundary does not follow any watershed. But there are 3 valleys; Changchenmo valley, Pangong Lake and the Indus River Valley. Kongka pass forms the dividing line. To the north of Kongka pass, on one side there is Sinkiang while the other sides belongs to Kashmir.

To the south of the Konka pass, area to the west belongs to Ladakh and areas to the east belong to Tibet. Therefore on these natural geographical features is formed the administrative boundary.

According to what the E.A. Ministry officials said and you stated today, the Indian frontier extends from the Karakoram pass to 80 degrees eastwards towards the Kunlun mountains, which will mean that the border jumps from the Karakoram mountains to Kunlun range, which has always been regarded as Chinese territory.

Many peaks of the Karakoram range form a watershed

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while even higher peaks of the Korakoram are on the Indian side. Therefore, Korakoram is the natural boundary and we have followed it in our administration. So, in geographical description we differ widely.

(2) Northern border of the area of Aksaichin has always been under Sinkiang and we have many historical records going over a long period of time to prove this. Many of the place names in this area are in Uighur language. This area together with Sinkiang has been a part of China for the last 200 years. There are salt lakes and pastures in this area but people are nomadic and not many lead a settled life. In distant centuries, trade between India and China used to be carried out through this area. We also have records of this and we can put forward historical proofs.

Area south of this is in Tibet.

Your Excellency mentioned about family partition of Ladakh. Once Ladakh was an independent State but it was divided and boundaries were established. After that this boundary is shown on our maps. To the east of this boundary, the area belongs to China; to the west, the area belongs to India.

Your Excellency mentioned cases of tax collection by one country in the areas of another. Even so China collected taxes in Ladakh. Yesterday Your Excellency mentioned about Minsar from where taxes were collected. I have checked and find that Minsar is about 200 kilometers from Ladakh. It is actually nearer to the UP border.

So this line of administrative jurisdiction was also formed throughout the historical period. New China inherited this boundary from old China and it made no changes in it. The Peoples Liberation Army went to Sinkiang in 1949. From there it went to South Sinkiang in 1950 and thence to Ari district of Tibet through this area by the end of 1950. This area is on a high plateau. In 1950 the PLA transported

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its supplies on horses ^{Later a highway was also built.} ~~but later they also used motor vehicles and built a highway.~~ This area has always been under the administrative jurisdiction either of Sinkiang or of Tibet and we have not exceeded the limits of the administrative jurisdiction of either Sinkiang or Tibet in this area.

You have spoken about surveys. But I had also mentioned yesterday about two surveys - in 1891-92 during the Manchu dynasty survey teams went to Karak^{um} mountains and Kongka Pass. In 1941-1942 surveys were carried out in areas of Aksaichin and Kongka Pass.

We also have revenue records and survey reports in support of our argument.

Another point mentioned by you requires to be answered. Your Excellency mentioned about reconnaissance parties which went to north-east of Kongka Pass after the independence of India.

It is possible that these parties went into these areas on the basis of Indian maps and that they did not meet Chinese forces. But this is because the area to the north and east of Kongka Pass is almost ~~inhabited~~ uninhabited and some of it moreover is like a desert. At many places motor cars can pass. In some places there are pastures. But generally speaking there are ^{no} ~~more~~ pastures and the area is almost uninhabited.

All along our thinking has been like India's namely that there could not be any problem in this sector. Our people do not normally go there except during the pasture season. During the winter there is heavy snow. As ^Yur Excellency has yourself said in the Parliament, this area is very vague. Therefore it is quite possible ^{for} ~~that~~ Indian personnel to enter it without our finding them out. But in some cases as in 1958-1959 we also did find them out. But not being found out is no proof of the area.

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belonging to India.

Areas to the south of Kongka Pass belong to Tibet. In this area ^mDenchok is occupied by Indian forces. According to historical facts it actually belongs to China. But we only indicated this to the Government of India through diplomatic channels without taking any action.

(3) Question about Treaties and negotiations;

Your Excellency has mentioned two treaties, the treaty of 1684 and the treaty of 1842. But these were treaties only between local authorities and these treaties merely said that each side should stay within its own border and refrain from trespassing or transgressing the border of the other and undertaking to maintain everlasting friendship. There is however no mention as to where exactly the boundary lay. It was of course impossible in those days to state ^{it} in latitudes and longitudes but even no specific names of places are mentioned and therefore it cannot be proved from these treaties that the boundary was delimited and no one can tell where the boundary lay.

Your Excellency mentioned about Chinese officer's reply to the British Government in 1846. The Chinese Commissioner merely said that "there is no dispute about boundary between Tibet and Ladakh". This is put in very general terms and it does not mention any specific places along the border. In 1899, the British Government negotiated with our Government on the question of the border between Sinkiang and Kashmir. Through these negotiations, the British Government even proposed that Karakash river valley belonged to China but no agreement was reached because of other disputes.

Between 1919 and 1927 the local Tibetan Government carried negotiations about the border between Tibet and Ladakh with the British Government. Here too no agreement was reached. All this would show that this sector of the boundary was never determined or delimited, although there is a traditional and customary line.

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Your Excellency said that India did not make any territorial claims. However if the Govt. of India insist that the boundary line as on the Indian maps is the ^{Chinese} boundary and therefore the ~~the~~ armed forces and ~~Chinese~~ administrative personnel should withdraw from the western sector, it would amount to a territorial claim.

On the eastern sector, the Chinese Government has documentary evidence that the area south of the line now reached by the Govt. of India, used to belong to Tibet and that the Indian administration was extended to it only gradually. But if we were to demand for withdrawal of Indian troops and their administrative personnel from this area this will also be a territorial claim.

There are disputes about boundary because it was never delimited and therefore we must conduct negotiations but neither side should ask the other side to withdraw.

(4) Maps and Accounts of Travellers:

I have already mentioned about changes in British and Indian maps. As far as the western sector is concerned, these changes seem to have taken place in four stages:

(i) Before 1862: Upto 1862, the alignment in the British and Indian maps was more or less the same as the alignment in Chinese maps. It is important to note that this period is later than both treaties mentioned by Your Excellency and also later than 1846 when the Chinese Commissioner made the reply to the British.

(ii) The second stage is from 1865 to 1943: During this long period most of the Indian maps did not draw any boundary line at all. But some used colour shade showing the borders as not determined.

(iii) Third stage comes in 1950 when the Indian maps started using colour shade but marked the boundary as undefined. The area in colour is the same as in present Indian maps.

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(iv) The fourth stage starts in 1950 when the Indian maps show the border line as in present maps but removed the word undefined.

Therefore, the Indian and British maps made great changes while the Chinese maps broadly are the same despite small divergences.

Your Excellency mentioned two maps - one by Hu ^{Ta-chen} ~~Wei Teh~~ Minister at St. Petersburg. Even in this map, however, the border line is not entirely the same as ⁱⁿ the Indian map.

Postal Map. Your Excellency knows that British Imperialism did many things to the disadvantage of China. Indian Government has mentioned of only two maps to our disadvantage. We can mention a number of Indian maps which are to our advantage. We have not got them with us now but we are willing to show them to you in any treaty negotiations.

As regards accounts of travellers, travellers made different accounts of reports and some of them are in favour of China. But here again Your Excellency knows well with what purpose these travellers went to Sinkiang and Tibet.

In giving Your Excellency this reply on the condition on western sector boundary, I have no intention to ask the Government of India to entirely agree with our stand point or explanations. I was merely clarifying that the western sector of the boundary like the eastern sector of the boundary is undefined. The stand and the view points on both sides as well as the facts differ greatly and therefore there is need for negotiations. However, in the meantime, each side may retain its stand. We should exchange material for finding a common ground and proposals for the solution of the border questions.

It is difficult to settle the boundary question specifically in these talks but we should seek avenues for settlement.

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And, therefore, I have made the proposal for ~~the~~-a joint committee. We may exchange and examine material and a time-limit can be set for the work of the committee. It should submit its report with a plan for solution of the boundary dispute. This can be later taken up for higher level talks.

I have already mentioned the five points which I think form a common ground. These are :-

- (i) our boundaries are not delimited and therefore there is a dispute about them;
- (ii) However, this is a line of actual control both in the eastern as well as the western sector and also in the middle sector;
- (iii) geographical features should be taken into account in settling the border. One of these principles would be watershed and there would be also other features like valleys and mountain passes etc. These principles should be applicable to all sectors, eastern, western and middle;
- (iv) each side should keep to this line and make no territorial claims. This does not discount individual adjustment along the border later;
- (v) national sentiments should be respected. For both countries a lot of sentiments are tied around the Himalayas and the Karakoram.

If your Excellency agrees with these points it would facilitate the work of joint committee and also the work for negotiating for a settlement. I would also again suggest that the forces of both sides should be removed from the border and we should not merely rest satisfied with stoppage of patrolling activity.

(It was decided that the two Prime Ministers will meet again at 10.30 a.m. on 24th April, 1960).

Handwritten signature
24-4-60.